

Know the law. Follow the process. Protect your property.

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This guide is for general information only and does not constitute legal advice. For specific legal matters, consult a qualified Ghanaian legal practitioner.

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INTRODUCTION

Most landlords in Ghana do not know the legal eviction process. Frustrated by unpaid rent or problem tenants, many resort to illegal self-help measures: changing locks, cutting electricity, removing roofing or doors, threats, or harassment. All of these are illegal under the Rent Act 1963 (Act 220) and can expose the landlord to criminal prosecution.

This guide takes you through every step of the legal eviction process in plain language — without legal jargon, written for a landlord with no legal background. From the first unpaid rent to the moment the bailiff enforces your court order, you will know exactly what to do and when.

What this guide does: It explains the law, walks you through the formal process, and shows you how to protect yourself at every stage.

What this guide does NOT do: It is not a substitute for legal advice. Complex cases, disputes over the amount owed, or commercial evictions should involve a qualified lawyer. This guide does not apply to commercial tenancies, which follow different procedures.

Who should read it: Individual landlords, property managers, and agents managing residential properties in Ghana.

The key message: The legal process is slower than you want it to be. You cannot rush it. But it is the only process that actually works, and it protects you from criminal liability and civil counterclaims.

CHAPTER 1: WHAT THE LAW SAYS ABOUT EVICTION

The Foundation Rule: A tenant cannot be removed from a property except by a lawful court or tribunal order. This is the law in Ghana. No other method is legal.

The Rent Act, 1963 (Act 220): This is the primary law that governs all residential tenancies in Ghana. It sets out landlord rights, tenant rights, rent control rules, advance payment limits, notice requirements, and the specific grounds on which a landlord may lawfully recover possession of a property.

The Rent Regulations, 1964 (L.I. 369): This is a set of detailed rules that sit underneath Act 220. It covers the specific procedures you must follow, including the exact forms to use (Form 9, for example), how many days' notice you must give, how to serve notice, and how to file with the Rent Control Department.

The Rent Control Department: This is a government department under the Ministry of Works and Housing. Every district has a Rent Control office. The department is staffed by Rent Officers and Rent Managers who investigate tenant disputes, attempt mediation, and refer cases to the Rent Magistrate Court if mediation fails.

The Rent Magistrate Court: This is a specialised court that hears rent and tenancy disputes. A Rent Magistrate is the judge. If your case reaches the Magistrate, they will hear evidence from both you and the tenant, review your documents, and make a decision. If they rule in your favour, they issue a Recovery of Possession Order (RPO). This RPO is the legal document that says you have the right to recover your property. No other document gives you that right.

Why Self-Help Eviction is Illegal:

Many landlords think they can speed up the process by taking matters into their own hands. They cannot. Here are the illegal actions:

- **Changing the locks** without an RPO — this is illegal and you can be prosecuted.
- **Removing roofing, doors, or windows** — this is illegal and may be criminal damage.
- **Cutting electricity, water, or gas** — this is illegal and you can be sued.
- **Verbal demands with a deadline** — not valid legal notice and cannot be enforced.
- **WhatsApp notice only** — not valid formal notice under the law.
- **Physical removal of tenant or belongings** — this is assault and trespass.

The Consequences: If you try any of these, the tenant can obtain an injunction (a court order that stops you) and you can be prosecuted. The entire eviction process restarts and you lose credibility with the Rent Control Department and the court. You may end up owing the tenant damages.

CHAPTER 2: GROUNDS FOR RECOVERY OF POSSESSION

You cannot evict a tenant for any reason. The law lists the specific reasons — called "grounds" — that are lawful. You must be able to prove your ground at a hearing. Here are the six main grounds:

Ground 1: Non-payment of Rent The tenant has failed to pay rent and the arrears exceed a reasonable amount. This is the most common ground. You must provide a rent ledger showing exactly what is owed and for which periods.

Ground 2: Breach of Tenancy Agreement The tenant has broken a material term of the agreement. Examples: subletting without your consent, running a business from a residential property, causing deliberate damage. You must provide a copy of the agreement and evidence of the breach.

Ground 3: Personal Occupation You genuinely need the property for yourself or an immediate family member. This ground is scrutinised closely. The Rent Control Department will investigate whether your claim is genuine. You will need to provide evidence (letter from employer, family document, etc.).

Ground 4: Redevelopment You need the property for substantial redevelopment or demolition. You must provide approved architectural or engineering plans.

Ground 5: Illegal Use The tenant is using the property for an illegal purpose. You must report this to police and provide evidence.

Ground 6: End of Fixed Tenancy Term The fixed-term tenancy has expired and the tenant refuses to vacate. You must provide a copy of the agreement showing the end date.

Important: Stating a ground is not enough. At a Rent Control hearing or in court, you must prove it with documents and evidence. Without proof, your case fails.

CHAPTER 3: BEFORE YOU SERVE ANY NOTICE

Do NOT rush to serve formal notice. The most common landlord mistakes happen at this stage because paperwork is incomplete. Do this first:

Step 1: Check Your Paperwork Do you have a signed tenancy agreement? If yes, make a copy. If no, you have a harder case but not an impossible one. Write down all the evidence of tenancy you have: receipts, letters, WhatsApp messages, witness statements from neighbours who know the tenant lives there.

Step 2: Calculate the Arrears Precisely Write out a clear rent ledger showing: date the rent was due, amount due, amount paid (if any), date paid, and the exact period covered. Identify the total amount overdue and the exact periods still unpaid.

Step 3: Send a Rent Reminder First Before any formal legal notice, send a written reminder letter asking the tenant to pay within 7 days. This is not required by law but it is expected by Rent Control and it shows good faith. Keep a copy.

Step 4: Confirm the Tenant's Contact Details Notice must be served to the right person at the right address. Do you have the tenant's phone number? Current address? If the tenant has abandoned the property, different rules apply (see later chapters).

Step 5: Review Your Advance Rent If you received advance rent at the start of the tenancy, is the advance period still running? A tenant who is "late" on rent during an advance period may not actually be in default. If the advance period covers June–August and it is July, the tenant is not yet late even if they haven't paid in July.

Step 6: Document Everything from Now On From this point, every communication must be in writing. Keep copies of everything. WhatsApp screenshots are acceptable as supporting evidence but they are not formal legal notice. Once you are serious about eviction, do not rely on informal communication.

CHAPTER 4: THE FORMAL WARNING

What It Is: A Formal Warning is a letter that notifies the tenant in writing that they have breached their tenancy (unpaid rent, broken agreement, etc.) and gives them 14 days to fix it. It is not yet a legal document — it is a final chance before formal proceedings.

Why It Matters: The warning creates a paper trail. It shows the Rent Control Department that you made a reasonable attempt to resolve the matter informally. It is expected. If the tenant remedies the breach after the warning, the matter ends — you have been paid or the breach is fixed.

What It Must Contain: • Full name of the tenant

- Full address of the property
- Specific breach (e.g. "You owe GHS 500 for rent for the period June–July 2026")
- 14-day period to remedy
- Clear statement that formal proceedings will follow if not remedied
- Your signature and date

How to Serve It: • In person: hand it to the tenant and ask them to sign a copy acknowledging receipt

- By email: send it and keep the sent email with timestamp
- By registered post: keep the post office receipt
- Do NOT use WhatsApp message alone — it is not sufficient legal notice

What NOT to Do: • Do not threaten violence or illegal action

- Do not include "leave immediately" in the same letter — that is confusion
- Do not post it publicly on the door — that is harassment

CHAPTER 5: THE QUIT NOTICE

What a Quit Notice Is: A Quit Notice is a formal legal document served under Act 220. It is different from the Formal Warning. It says "Leave the property by [date] or I will take you to the Rent Control Department." This is the step that triggers the legal process.

What It Must Contain (Essential Elements):

- Date of service
- Full name of the tenant
- Full address of the property
- The specific ground(s) for recovery (cite the ground from Chapter 2)
- The required notice period (see below)
- Clear statement: "If you do not vacate by [date], the matter will be referred to the Rent Control Department"
- Your signature (or your authorised agent's signature)

Notice Periods Under Act 220: For a monthly tenancy: one month's notice.

For a longer fixed tenancy: typically three months. The notice period begins on the date of service and must fully expire before you can file at Rent Control.

How to Serve a Quit Notice:

- In writing — always
- Personally to the tenant (get signed acknowledgement)
- By registered post (keep receipt and track delivery)
- By bailiff service (most formal option)
- NOT by verbal delivery, WhatsApp only, or posting under the door only

If the Tenant Ignores the Notice: Wait for the notice period to expire. Do not wait longer — file at Rent Control on the day after the notice period ends. Do not attempt to physically re-enter the property yourself.

CHAPTER 6: THE RENT CONTROL DEPARTMENT

The Rent Control Department is a government office in every district under the Ministry of Works and Housing. When you file a complaint, a Rent Officer is assigned to investigate. Both parties appear before the Rent Officer. The Rent Officer attempts mediation. If that fails, the matter is referred to the Rent Magistrate Court.

Bring: completed Form 9, tenancy agreement, rent receipts, Formal Warning copy, served Quit Notice copy with proof of service, rent ledger, and other correspondence.

Timeline: Processes take weeks to months depending on the district and caseload.

CHAPTER 7: FORM 9

Form 9 is the prescribed application form under L.I. 369. It initiates Rent Control proceedings. Get it from your district Rent Control office.

Key sections: Applicant details (you), Respondent details (tenant), property details, ground for recovery, and Statement of Facts.

Statement of Facts: This is crucial. State when the tenancy began, agreed rent, when payments stopped, total arrears, when warning was served, when Quit Notice was served, and that tenant remains in occupation without paying.

Common mistakes: Incomplete sections, vague facts, missing documents, wrong ground, filing before notice period expires.

CHAPTER 8: THE RENT MAGISTRATE COURT HEARING

After failed mediation, your case goes to the Rent Magistrate Court. The Magistrate reviews documents and hears both sides.

What to expect: Formal hearing before a Rent Magistrate. Present your case calmly. Stick to facts. Address the Magistrate, not the tenant.

Bring: All original documents (agreement, receipts, warning, Quit Notice with proof of service, Form 9, rent ledger). Consider a lawyer if arrears are large.

Decision: If the Magistrate rules in your favour, a Recovery of Possession Order (RPO) is issued. This authorises you to recover the property. The RPO specifies a date by which the tenant must vacate.

CHAPTER 9: AFTER THE ORDER — ENFORCEMENT AND BAILIFFS

If the tenant does not vacate by the RPO date, you must apply for enforcement. You still cannot physically remove the tenant yourself.

Return to the Rent Magistrate Court with evidence that the tenant has not vacated. The court issues a Warrant of Possession, which authorises a court bailiff to enforce the order.

The bailiff (court officer) is the only person legally authorised to physically enforce the warrant. They attend the property, oversee removal, and document everything.

You may be present. Do not touch the tenant's belongings. Allow the bailiff to manage the process. Change locks only after the bailiff confirms the property is clear.

Storage: Do not dispose of abandoned belongings immediately. Store them and give the tenant notice to collect. Disposing without notice may result in a claim against you.

CHAPTER 10: WHAT TENANTS CAN DO

Understanding tenant rights helps you avoid challengeable steps. A tenant can:

- Dispute the arrears amount
- Challenge the Quit Notice validity (wrong form, insufficient period, improper service)
- Apply for an injunction against unlawful eviction (lock changes, utility cuts, harassment)
- Counterclaim for breach of landlord duties (failure to repair, unlawful entry)
- Request mediation instead of court

This is why every step must be done correctly. A valid Quit Notice properly served is hard to challenge. A sloppy notice loses in court.

CHAPTER 11: THE MOST COMMON MISTAKES LANDLORDS MAKE

1. **Changing locks without an RPO** — illegal
2. **Cutting electricity or water** — illegal and civil liability
3. **Serving notice by WhatsApp only** — not valid legal notice
4. **Serving notice before advance rent expires** — tenant not in default yet
5. **Not keeping rent ledger or receipts** — cannot prove arrears at hearing
6. **Filing Form 9 before notice period expires** — application rejected
7. **Citing wrong ground** — case fails on technicality
8. **Attending hearing without documents** — cannot prove case
9. **Accepting partial rent after Quit Notice** — may waive your rights
10. **Not following up after RPO** — tenant stays indefinitely

CHAPTER 12: FREQUENTLY ASKED QUESTIONS

Q1: How long does the whole process take? A: 3–6 months on average, depending on the district and whether the tenant cooperates.

Q2: Do I need a lawyer? A: For simple non-payment cases, no. For complex cases, disputed amounts, or counterclaims, yes.

Q3: Can I evict a tenant with a child or elderly relative? A: Yes, if you follow the law. Household composition does not change the legal process.

Q4: What if the tenant has no Ghana Card? A: Provide what identification you have and describe them fully.

Q5: Can I evict during advance rent period? A: No. The tenant is not in default if you have advance rent for those months.

Q6: What if tenant disappears and leaves belongings? A: Store belongings and give notice. Do not dispose of them immediately.

Q7: What if tenant sub-let without permission? A: This is a breach. Ground 2 applies. Proceed as for any breach.

Q8: Can I charge the tenant for eviction costs? A: The RPO may order the tenant to pay your costs. Enforcement is separate.

Q9: What if I lose at Rent Control? A: Your case is dismissed. You cannot recover the property. Appeal options are limited.

Q10: Is there a faster process for commercial tenants? A: Commercial evictions follow a different (often faster) procedure. Consult a lawyer.

Q11: What if the tenant pays arrears before the hearing? A: Accept the payment. The ground for eviction (non-payment) is removed. Mediation or withdrawal is the next step.

Q12: Can I prevent problem tenants at the start? A: Yes, through tenant screening. The PRC Tenant Screening Checklist product helps.

GLOSSARY OF KEY TERMS

Act 220: The Rent Act, 1963 — the primary law governing residential tenancies in Ghana.

L.I. 369: The Rent Regulations, 1964 — detailed procedural rules under Act 220.

Rent Control Department: Government office in every district that investigates disputes and refers cases to court.

Rent Officer: Government official who investigates complaints and attempts mediation.

Rent Magistrate Court: Specialised court that hears rent disputes and issues Recovery Orders.

Form 9: The official application form used to file at the Rent Control Department.

Quit Notice: Formal notice requiring a tenant to vacate within a specified period.

Recovery of Possession Order (RPO): Court order authorising the landlord to recover the property.

Warrant of Possession: Court document authorising a bailiff to enforce the RPO.

Bailiff: Court officer who physically enforces possession orders.

Advance Rent: Rent paid upfront for future months (e.g. June rent paid in May).

Arrears: Rent that is overdue and unpaid.

Ground for Recovery: A lawful reason under Act 220 to seek possession (e.g. non-payment).

Tenant: Person renting a property from a landlord.

Landlord: Owner of a property who rents it to a tenant.

Agent: Person authorised to represent the landlord in tenancy matters.

Fixed-Term Tenancy: Lease with a specific start and end date.

Month-to-Month Tenancy: Lease that continues indefinitely, month by month.

Mediation: Process where both parties meet with a neutral third party to resolve disputes.

Injunction: Court order prohibiting a person from taking a specific action.

